



POLICE DEPARTMENT

January 6, 2014

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Louis Padilla
Tax Registry No. 919527
47 Precinct
Disciplinary Case No. 2011-5518

The above-named member of the Department appeared before Assistant Deputy Commissioner - Trials Claudia Daniels-DePeyster¹ on June 26, 2013, charged with the following:

1. Said Police Officer Louis Padilla, while assigned to the 47th Precinct, on or about and between February 9, 2010 and August 8, 2011, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer on several occasions assisted and/or requested the assistance of other members of the service to prevent the processing and adjudication of several summonses issued to various individuals.

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT
GENERAL REGULATIONS

2. Said Police Officer Louis Padilla while assigned as indicated above, on or about and between February 9, 2010 and August 8, 2011, upon observing, having become aware of, or upon receiving an allegation of corruption or misconduct involving a member of service, did fail and neglect to immediately notify the Internal Affairs Bureau, as required.

P.G. 207-21, Pages 1 and 2 – ALLEGATIONS OF CORRUPTION AND
OTHER MISCONDUCT AGAINST
MEMBER OF THE SERVICE

¹ Due to ADCT Daniels-DePeyster's long-term absence, this Report and Recommendation is submitted by Deputy Commissioner -Trials Martin G. Karopkin.

The Department was represented by Vivian Joo, Esq., Department Advocate's Office, and Respondent was represented by Michael Martinez, Esq.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Not Guilty.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Detectives Derick Cuebas and Leslie Santiago as witnesses.

Detective Derick Cuebas

Cuebas, a 22-year member of the Department, is currently assigned to Group 22 of the Internal Affairs Bureau (IAB). He worked as an investigator in a Department wiretap investigation between January 1, 2010, and December 31, 2010. According to Cuebas, IAB assisted the Bronx District Attorney's (DA's) investigation regarding the fixing of summonses in the Department. While the initial subject of the wiretap was Police Officer Jose Ramos, who had reached out to a delegate to take care of a summons for his personal vehicle, Cuebas testified that other subjects were added to the wiretap

investigation. The other subjects were delegates within the Bronx County Patrolmen's Benevolent Association (PBA).

The wiretap investigation resulted in arrests and indictments. It was conducted by several Department investigators who were set-up in a room in the Bronx DA's office with telephones and monitors that recorded telephone calls and text messages exchanged by the subjects. Due to the wiretap system being computerized, the monitor received and downloaded the subjects' telephone calls.

At one point in time, Police Officer Virgilio Bencosme, a delegate of the 40 Precinct, was monitored on the wiretap, and was subsequently indicted as a result of the telephone calls. Cuebas confirmed that he intercepted a telephone call between Bencosme and Police Officer Jose Gordian on March 21, 2010, as well as a telephone conversation between Bencosme and Respondent on March 21, 2010.²

Cuebas created a transcription of the intercepted March 21, 2010 conversation between Bencosme and Gordian, as well as a transcription of the intercepted conversation between Bencosme and Respondent. Cuebas confirmed that hard copies were produced of the text messages exchanged between Bencosme and Gordian on March 21, 2010.³ With respect to the text messages, Cuebas testified that they would appear on the monitor during the wiretap investigation, and were then downloaded off of the computer itself.

² Department's Exhibit (DX) 1 is a compact disc containing audio recordings of the telephone conversation between Bencosme and Gordian and the telephone conversations between Bencosme and Respondent, dated March 21, 2010. There is also an audio recording of the voicemail message left by Respondent on Bencosme's phone on March 25, 2010.

³ DX 2 is a package of reports containing transcripts of the phone conversation between Bencosme and Gordian as well as the phone conversation between Bencosme and Respondent, dated March 21, 2010. Also included is a transcript of the voicemail message left by Respondent on Bencosme's phone on March 25, 2010. The exhibit also includes transcripts of the text messages exchanged between Bencosme and Gordian on March 21, 2010.

According to Cuebas, the four pages of the text messages indicate that Bencosme was asked to assist in taking care of a summons.

On cross-examination, Cuebas explained his role in the initial investigation into Ramos. There were allegations that Ramos was selling drugs out of a barbershop that he had owned, and Cuebas was assigned to investigate those allegations. Cuebas notified the Bronx DA's office that he was investigating Ramos in the drug-dealing capacity.

Subsequently, a wiretap was issued to allow the Department, working in conjunction with the Bronx DA's office, to conduct the investigation by listening to Ramos' phone conversations. Cuebas explained that getting the wiretap to investigate Ramos involved asking the judge for permission to listen to Ramos' phone conversations. The Department had to have had at least some kind of proof that Ramos was engaged in drug dealing, and it had to be proven that there was no other alternative to catch Ramos without tapping his phone.

Even though the initial reason for the wiretap was to uncover evidence of drug dealing activity, evidence of ticket fixing had been discovered throughout the investigation. Cuebas admitted that he could not recall the amount of time that elapsed before he uncovered evidence of ticket fixing. According to Cuebas, while Ramos was under investigation for drug dealing, he reached out to another delegate for help in taking care of a summons issued for his personal vehicle. Although Cuebas could not recall who Ramos had reached out to for help, this discovery of an officer asking for help in taking care of a summons opened the door to the ticket fixing wiretap investigations. Cuebas was not involved in getting the additional wiretaps himself, but did admit that the

judge had to authorize separate wiretaps for other individuals who were implicated in the misconduct.

Whenever information relating to ticket fixing came up during the investigation, Cuebas testified that his job was to "note, transcribe, and then download" anything involving requesting assistance to take care of a summons. This often included phrases that implied ticket fixing based on the language used. Cuebas admitted that phrases such as "take care of," and "do the right thing" were triggers for him, as well as evidence of any type of criminality aside from ticket fixing.

Cuebas monitored phone conversations for a period of ten hours a day during the wiretap investigation. Phone calls were recorded automatically as they came in, and text messages were intercepted in real time. In order to prevent the investigators from listening to personal information, the Bronx DA's office established strict guidelines for intercepting phone calls and posted the guidelines over the monitors at each station. According to Cuebas, when a phone call came in, the Department would intercept it, and the investigators had two minutes before they had to "minimize" the call. "Minimizing" meant that after two minutes, Cuebas would turn off the recorder for 30 seconds and allow the conversation to continue without monitoring it if he did not hear anything relating to ticket fixing or other criminality. After the 30 second mark, investigators monitored the conversation again for an additional minute, and if they did not hear anything of a criminal nature, they minimized it again. The investigators would do this repeatedly until the conversation ended.

With regard to the transcript from March 21, 2010, Cuebas confirmed that at some point during the conversation between Bencosme and Gordian, Gordian told

Bencosme about a ticket belonging to someone who is related to him, and then Bencosme called Respondent. The phone call on the transcript involved Bencosme reaching out to Respondent, a delegate of the 47 Precinct, to see if he knew Police Officer Drucker. Cuebas testified that at the time, it did not appear as though Respondent knew if Drucker worked in his command. Cuebas also confirmed that at no point in the phone conversation did Bencosme state why he was looking for Drucker, and Cuebas did not see the word "summons" used in that transcript. While Bencosme did tell Respondent that he was asking "to take care of something," Cuebas admitted that even though that phrase is often used in ticket fixing conversations, it can also refer to other things.

During redirect examination, Cuebas confirmed that during the wiretap investigation, he had heard the term "take care of something" very frequently. He explained that quite often during the course of the investigation, when the phrase "taking care of something" was used, it often implied taking care of a summons.

Upon further questioning by the Court, Cuebas testified that "taking care of something" was not used for any other purpose during the course of the investigation. He admitted that there was a period, although he could not recall the exact time period, where the subject officers believed they were being wiretapped and would not directly ask each other to take care of a summons.

Detective Leslie Santiago

Santiago, a 17-year member of the Department, has been assigned to the Chief of Internal Affairs for over a year. She has conducted administrative disciplinary interviews that were part of the wiretap investigation. Santiago has listened to over 100 wiretap

conversations regarding ticket fixing allegations, and has conducted close to 100 official Department interviews.

During the official Department interviews, subjects were asked about their pedigree information, "they were asked to discuss different terms with regards to summonses," and then they were presented with whatever evidence the Department had about their investigations. Santiago testified that the wiretap investigation revealed the process through which summonses were taken care of within the Department. Union delegates took care of them by not turning in a summons, by removing the summons from the summons box, or by not giving proper testimony in traffic court.

Investigators were randomly assigned wiretap cases by their supervisor, Lieutenant Mercedes Fabregas (who has since retired), on a daily basis. Santiago confirmed that one of her assignments was to investigate and interview Respondent about one incident that he was involved in, which was captured on the wiretap. In that instance, Bencosme from the 40 Precinct reached out to Respondent to request that he take care of a C summons that was issued by a member from his precinct. Santiago and Fabregas conducted the interview with Respondent in one of the IAB facilities.⁴

Santiago testified that she followed the standard procedure that was implemented during official Department interviews when she interviewed Respondent. Respondent was asked pedigree questions about his background, and was introduced to the three terms- "professional courtesy," "taking care of a summons," and "taken care of in court." He was first asked what he believed all of the three terms meant to him, and then what the terms meant with regard to summonses. Next, he was asked what the terms meant

⁴ DX 3 is an audio tape of Respondent's official Department interview, dated August 9, 2011. DX 3A is a transcript of Respondent's official Department interview.

with regard to whether he had ever received requests or asked requests about summonses. Santiago testified that Respondent answered that he understood that "taking care of a summons" meant making it disappear. When Respondent was asked if he had ever been asked to take care of a summons, his initial reply was that he could not recall exactly. During Respondent's official Department interview, the question was then narrowed down to whether he had been asked to take care of a summons within the past year and a half and Respondent stated, "In my recollection, none." Santiago explained that Respondent said that "[he] has done it," but could not give a specific amount of times that he had done so. When Respondent was asked how many times he had called out a request on behalf of members in his command to get summonses fixed or taken care of at another command, Respondent admitted to making phone calls but was not sure of the exact number of phone calls he had made.

Santiago stated that the voicemail left on Bencome's phone by "Officer Diaz" was actually Respondent and it also matched his cell phone number. With regard to the voicemail, Santiago testified that Respondent was asked if he was the one who had called Bencosme and left the voicemail. This was initially unclear because when the phone call was transcribed, it sounded as though the caller said his name was "Officer Diaz" in the voice message. However, after reviewing the tape, it was clear that Respondent was the one who left the voicemail, and this was confirmed by the matching cellular phone number. After Respondent heard the tape, he also confirmed that he was the one who left the voicemail.

When the voicemail was played for him during his official Department interview, Respondent confirmed that it was his voice on the message. Santiago brought out in her

testimony the following exchange that occurred between Respondent and Fabregas in his official Department interview (DX 2):

Fabregas: According to that—it is taken care of.

Respondent: Uh huh.

Fabregas: It's safe to say that the summons was taken care of?

Respondent: Yes.

On cross-examination, when Santiago was asked if she knew that the one “that was originally described as Officer Diaz” was actually Respondent, she stated, “Well, we listened to the tape when going back and said Officer Padilla.” She testified that they knew it was Respondent before the official Department interview started. Santiago was asked if Respondent was asked during his official Department interview if he knew “an Officer Diaz” and she stated, “Yes.” She agreed that Fabregas asked Respondent if he knew an Officer Diaz and that his response was that he was not sure because it is a common name.

Santiago agreed that she was aware that the voice on the recording was Respondent. She also agreed that Respondent volunteered that it was his voice on the recording even though he had been told that he was going to be listening to tape recording of Officer Diaz.

Santiago stated that Respondent could not remember exactly how many summonses were fixed. Santiago agreed that Respondent could not give any specific examples of a ticket that he was involved in fixing nor did the playing of the tape refresh his recollection as to the specific instance.

On cross-examination, Santiago explained that a lot of work was involved in investigating the ticket fixing cases. Santiago had conducted hundreds of interviews, usually between two to four interviews a day, and she reviewed all of the documentation before she did the official Department interviews. Interviewing the officers is usually the final step in the wiretapping investigations. She testified that investigators went over every bit of evidence they had before they conducted the interviews, including listening to tapes and looking at the transcripts. Santiago explained that it was only possible to charge an officer for ticket fixing that occurred within an 18-month period because of the existing statute of limitations.

On the issue of whether Respondent could recall a specific example of a ticket that he had fixed in the last 18 months, Santiago testified that Respondent had answered "in my recollection, none." The next question that Respondent was asked was "Never? Have you ever been asked?" and Santiago admitted that it may have been possible that the question referred to a time period beyond the 18-month statute of limitation.

Respondent had been a delegate for three years, and the next question he was asked during his official Department interview was whether he was asked to take care of a summons during his time as a delegate, to which he replied that he had been asked but could not give the exact amount of times. Santiago admitted that the transcript between Bencosme and Respondent did not include the word "summons." With regards to the phone call exchanged between Bencosme and Respondent, when Bencosme asked Respondent if he knew someone named Drucker, Santiago confirmed that Respondent answered saying that he was not sure. Santiago testified that Respondent understood

“taking care of something” to mean taking care of a summons, and that is what was exchanged between Bencosme and Respondent in the transcript.

After Santiago finished conducting her official Department interviews, worksheets were prepared and submitted to the Department Advocate’s Office. Although Santiago did not handle this part of the investigation, she testified that the worksheets were summaries of the interviews that were conducted with the Respondents, and they had to be filled out in the ordinary course of business. Santiago’s duty was to conduct the investigation, listen to tapes, and submit the documentation to another team, whose role was to prepare the cases once they were submitted to the Department Advocate’s Office, while Santiago herself was not presenting her information to the Department Advocate’s office directly. Although he was not present during the interview, Santiago confirmed that Detective Morgan Samuel prepared the worksheet based on Santiago’s work for Respondent’s case, and subsequently submitted it to the Department Advocate’s Office.⁵

Samuel’s worksheet was part of a summary of the interview that Santiago had conducted with Respondent. While the worksheet stated that Respondent admitted during his official Department interview that Gordian contacted Bencosme to get a summons taken care of, Santiago testified that Respondent did not state that during the interview.

Santiago testified that she was also required to fill out her own worksheets after taking notes during the interviews. These worksheets were filled out in the ordinary course of business, and were based on what she had heard during the interviews. Santiago confirmed that her own worksheet stated that Respondent admitted to receiving

⁵ Respondent’s Exhibit (RX) A is a one-page Police Department Investigating Officer’s Report in the case involving subject officer Police Officer Louis Padilla, dated August 17, 2011.

a couple of requests from other officers to fix or take care of summonses. Although Santiago testified that Respondent had not stated that he received requests from other officers, she explained that the worksheet was based on the "sum and substance" of the interview.⁶

While Santiago's investigating team was responsible for conducting interviews with officers, her team was not involved in issuing ticket fixing penalties. She admitted that there were never any command disciplines issued by her team based on the interviews that she had conducted, and that the disciplinary process was handed off to DAO. Santiago affirmed that if an officer had more than one incident of ticket fixing, it sometimes meant that the case went the route of charges and specifications, which is official Department discipline.

In the eight years that Santiago has worked for IAB, she had never been involved in any ticket fixing investigations before the Bronx DA's office investigation. Santiago testified that she had investigated reports of misconduct and corruption. Santiago admitted that there were other unions involved in ticket fixing.

On redirect examination, Santiago confirmed that Gordian was from the 40 Precinct and was not a delegate.

On re-cross examination, Santiago admitted to interviewing Gordian. On the subject of whether Gordian ever remembered the specific request to have a summons fixed, Santiago testified that her worksheet is the sum and substance of what he had admitted. To her knowledge, the summons itself was never found, and she does not know if Michelle Ching, the woman to whom the summons was issued, was interviewed.

⁶ RX B is an Internal Affairs Bureau Investigating Officer's Report prepared by Detective Santiago dated August 9, 2011.

Santiago testified that Drucker was interviewed by Sergeant Ortiz, and Drucker claimed he did not remember the incident or the summons.

Respondent's Case

Respondent testified on his own behalf.

Respondent

Respondent, a member of the Department for over 16 years, is currently assigned to the 47 Precinct and has worked at the precinct since 2005. Prior to that, he was assigned to the 44 Precinct. At the 47 Precinct, Respondent's duties are day-tour patrol. He has been doing regular patrol for the last six years, and has made over 800 arrests during the course of his career. Aside from the present charges, Respondent has never been the subject of formal Department discipline and has never had any charges filed against him.

On August 9, 2011, Respondent was called in for an official Department interview. Before the interview began, Respondent was told that he was a subject in a ticket fixing investigation. After he was played a tape recording of a phone call that he received from Bencosme, Respondent testified that he did not remember having that conversation. He testified that nothing in the conversation made him think that Bencosme was referring to fixing a summons when he told Respondent that he was calling to "take care of something." Since Respondent, a delegate, spoke to Bencosme, a 40 Precinct delegate, on a fairly regular basis, he explained that Bencosme could have been referring to a number of things, such as somebody's parked car in their driveway, or

a towed vehicle, although Respondent acknowledged that Bencosme could have been referring to fixing a summons.

Respondent agreed that during the interview they asked him about a person named Diaz. When they played the tape he recognized his voice and told them that it was his voice on the message. Before that they believed it was Diaz. Respondent does not have any independent recollection of leaving the message for Bencosme and does not know what it was about.

Respondent acknowledged that he probably fixed tickets throughout his career, although he could not say that he had fixed tickets within the past 18 months. With regard to him being charged with failing to immediately notify IAB upon receiving an allegation of corruption or misconduct between February 9, 2010 and August 8, 2011, Respondent testified that he could not remember being aware of any Department misconduct in that time period. With regard to the charge that he, on several occasions, assisted or requested the assistance of other members of the service to prevent the processing and adjudication of several summonses, Respondent testified that he is not guilty of that misconduct.

On cross-examination, Respondent acknowledged that he is no longer a delegate for the 47 Precinct, although he had been a delegate for the precinct for four years, and was a delegate in 2010. His co-delegates were Police Officer Annmarie Ennis and Police Officer Betty Carradero-Torres. As a delegate, Respondent's main duties were to listen to the complaints of the officers, act as a buffer between the supervisors and the officers, and try to assist other members of the service in making certain decisions. In addition, Respondent accompanied members of the service to their official Department interviews,

and helped them when they needed to adjudicate a command discipline. Respondent testified that he had to attend meetings once a month with most of the other Bronx delegates, and that is how he met Bencosme. While Bencosme and Respondent were on friendly terms, Respondent explained that they did not socialize outside of work hours.

When Bencosme called Respondent on March 21, 2010 to inquire about Drucker, Respondent admitted to not knowing who he was. During his official Department interview, he knew who Drucker was. Respondent was not working the day that phone call took place, and he clarified that during the phone conversation, Bencosme first asked to speak to Kevin Carney, who was in the barrier detail at the time. Next, Bencosme asked Respondent if one of the female delegates was working. Respondent testified that although he was not working, he was willing to help Bencosme.

With regard to Respondent saying "it's taken care of" in the voicemail tape recording, he testified that he is not sure that it was taken care of, and that if he did not personally handle it, it could have been "something that someone whispered to [him]," since he does not recall handling it personally.

Respondent admitted to making phone calls to other members of other commands to get summonses taken care of, but could not remember the number of calls that he made because he did not know the time frame during which these calls took place. On the subject of taking care of a summons within a time frame of 18 months, Respondent testified that there is possibly at least one time that he has taken care of a summons during that time. Respondent confirmed that at his official Department interview, he had acknowledged that there may have been more than one instance within the past year that he received these requests and that when he was given these requests to take care of

summonses, he did not notify IAB. Respondent denied that the reason he could not remember the number because it was more than one.

Upon further questioning by the Court, Respondent testified that he could not recall having any communications with Bencosme in between the time that the first phone call took place and the voicemail that he left for Bencosme. Respondent explained that he could not recall getting back to Bencosme about Drucker working in his command.

FINDINGS AND ANALYSIS

Specification No. 1 claims that Respondent "on or about and between February 9, 2010 and August 8, 2011, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit said Police Officer on several occasions assisted and/or requested the assistance of other members of the service to prevent the processing and adjudication of several summonses issued to various individuals."

Specifically the Department claims that Respondent fixed at least two summonses on two occasions. The first occasion charged is based on a wiretapped phone call made on March 21, 2010 by Police Officer Virgilio Bencosme, a union delegate at the 40 Precinct who was the subject of the wiretap, to Respondent who was a union delegate at the 47 Precinct. As will be seen, there is very little, if anything, in that conversation to link Respondent to any ticket fixing.

To understand the Department's case regarding that claimed misconduct one has to look beyond that conversation. The transcript of the March 21, 2010 has been offered in evidence along with other interceptions regarding the summons in question, (DX 2).

The first conversation is a text message from Police Officer Jose Gordian to Bencosme dated March 21, 2010. The time listed is 17:29:23 hours. The substance is: "Ben can you take care of a summons." The second conversation is irrelevant (I'm in the movies) but then at 17:30:21 hours, Gordian texts Bencosme: "432549115-6 and the name is Michelle G. Ching." The number appears to be a summons number and the name Ching appears to be the person who received the summons. As will be seen, other evidence confirms this.

The next incoming call, at 17:30:39 hours is irrelevant ("OK sorry thought u were sleeping") and apparently a response to Bencosme's comment that he was in the movies. The next communication in DX 2 is a call at 19:46:33 hours from Gordian to Bencosme. Gordian explains that the summons had been issued the night before in the 47 Precinct by Drucker to a "his god brother's girlfriend." Bencosme answers that he has the person's name and summons number and that he has all that he needs.

The next call in DX 2 is the call mentioned earlier from Bencosme to Respondent. It occurred at 22:21:43 hours. Bencosme asks Respondent if he knows a guy in his precinct named Drucker. Respondent answers: "The name sounds familiar, I don't know, maybe in Impact." The conversation goes on as Bencosme asks if Kevin is working or if "one of those females" is working. Apparently none of them are around so Respondent asks if Bencosme needs something. Bencosme then says: "Its, its, it's uh to take care of something, but I don't know if the guy works there or not, that's the thing, I don't have a tax number."

Respondent then offers to "give her a call and see if she is working." Bencosme interjects: "Yeah, or try to see if this guy works there." Respondent replies in the

affirmative and then Bencosme says, "Then just give me a call back and I'll let you know what it is." Respondent says: "You got it I'll give you a call right back." Bencosme responds that he is in no hurry as he "doing a midnight so take your time." The call ends.

The next communication in the evidence packet (DX 2) occurs four days later, on March 25, 2010. It is a call from Respondent to Bencosme's voicemail. It is listed on the "Transcript of Conversation" report as have occurred at 18:44:32 hrs. The message is: "This is Padilla from the 47 that ah is taken care of alright." ⁷

At both the official Department interview and at this trial, Respondent said he did not recall the conversation with Bencosme on March 21, 2010. That conversation never explicitly mentioned ticket fixing. Respondent was not a party to the communications between Gordion and Bencosme where ticket fixing was clearly mentioned. Even in the testimony offered by the Department, the only thing they claimed that would establish that the conversation between Respondent and Bencosme was about ticket fixing was the use of the phrase "take care of." The main focus of the conversation was regarding Drucker. Respondent did not know Drucker and did not know if he was assigned to the 47 Precinct. The agreement was that Respondent would call back later that night apparently with information about Drucker.

Bencosme's phone, we know, was the subject of a wiretap and that both voice and text communications were intercepted. Of course, there are other means of communication but the fact is that there is nothing in the evidence to establish that a communication occurred or if it did, what its substance was.

⁷ This is the last page of the package of evidence (DX 2). The preceding page has the identical report but in the conversation it list an officer "Diaz" and not Respondent as the speaker. A review of the actual conversation digitally recorded (DX 1) reveals that the name given is not clear and sounds like, "Diaz."

The next conversation in evidence occurred four days later and again only speaks vaguely about something being taken care of.

The Department claims that Respondent, during his official Department interview, admitted to fixing the summons issued to Ching or at least to conspiring with Bencosme to do so. Before analyzing this claimed admission, it is necessary to determine if the evidence, without that claimed admission, is sufficient to establish Respondent complicity in this matter.

Evidence, even in this forum, must establish, with some degree of certainty that the conduct it can prove occurred is not innocent or unrelated to the charged event. That unfortunately, is the problem with the evidence here.

The Department knew, through the communication it had intercepted between Gordian and Bencosme that Gordian wanted a ticket issued to a woman named Ching fixed. But the conversation between Bencosme and Respondent does not mention Ching or Gordian or summonses. Bencosme was a union delegate at one precinct in the Bronx; Respondent was a delegate at another precinct in the Bronx. Respondent testified at this trial that it was common for delegates to communicate and take care of various issues related to members of the service. The Department knew that Bencosme was talking about a summons but there is nothing in the evidence, beyond use of the phrase, "take care of" to establish that Respondent did. Even though the phrase "take care of" can and has been used in connection with ticket fixing it has not lost its ordinary innocent meaning. There is nothing in the conversation of March 21, 2010 between Respondent and Bencosme that establishes to a preponderance of the evidence that Respondent knew that Bencosme wanted to fix a summons or as it is sometimes referred to a "ticket."

On the other hand, the voicemail Respondent left for Bencosme might provide the necessary tie-in, but there is a problem. Whatever Bencosme was discussing with Respondent on March 21, 2010, the agreement was that Respondent would call right back and Bencosme said not to worry that he was working "a midnight." This indicates that the call back would have occurred sometime that night. Bencosme also indicated that during the call back he would tell Respondent what it was about. Bencosme's phone was the subject of a wiretap but there is no conversation, voicemail or e-mail provided as to what might have occurred between them later that night or in the early morning hours of March 22, 2010.

The voicemail message was left on the evening of March 25, 2010. There is no evidence to link what was "taken care of" at the 47 Precinct on March 25, 2010 to the earlier conversation, or to Drucker, or to a ticket alleged to have been issued to a Ms. Ching.

I would agree that there is reason to suspect that Respondent knowingly assisted in some kind of ticket fixing or at least made an effort at ticket fixing regarding the "Ching" summons, but there are gaps in the proof.

Among these gaps, is the fact that no summons was ever found. Drucker, who Respondent did not know at the time of the phone call but whom he did know a year later at the time of his official Department interview, was interviewed and had no recollection of the matter. There was no evidence that the summons book containing the summons number listed in the text message from Gordian to Bencosme, existed, or if it existed, was ever issued to Drucker. Ching was not interviewed. So there is no direct evidence that a

summons was ever issued to Ching, let alone “fixed.” There is no evidence or even reason to believe that Respondent knew Gordian or ever heard the name Ching.

This brings us to the official Department interview. During that interview, the Department claims Respondent admitted to fixing the “Ching” ticket. Additionally during that interview, the Department claims Respondent also admitted to being involved in ticket fixing within the 18-month period prior to the interview which is the second part of the claimed misconduct in Specification No. 1.⁸

To make a determination of the validity of these claims it is necessary to examine the official Department interview. The transcript offered by the Department in evidence (DX 3A), is inadequate, with both missing portions and errors.⁹ It also fails to convey the tone of the interview. It is necessary to listen to the audio tape recording of the interview, which I have done on multiple occasions.

Addressing first the issue of the claimed admission regarding the “Ching” summons it is appropriate to review what occurred during that official Department interview on this subject.

Respondent was played a portion of the recording of the conversation between himself and Bencosme of March 25, 2010. Respondent denied any recollection of this conversation.

Respondent was then asked several questions about an officer Diaz in his precinct: “Do you know an officer Diaz?” “Is there more than one officer Diaz on your

⁸ The interview was conducted on August 9, 2011. The charged period in the specification alleges that the misconduct occurred “on or about and between February 9, 2010 and August 8, 2011,” which coincides with what has been represented to be the Statue of Limitations period.

⁹ One simple example of this is failure to mention Sergeant Sparber (see RX B) as one of the officers who along with Lieutenant Fabergas (her name is handwritten on the transcript) and Santiago interviewed Respondent.

team?” “What Diaz would take care of a summons?” “Is there a Diaz that works inside?” The interviewer also explains to Respondent that, “This summons that he requested from you to fix. Somehow you have a conversation and then it gets back that Diaz took care of it.” The reason for this was that Santiago and the other investigators appeared to believe that the person on the audio recording of the call left on Bencosme’s answering machine had said “This is Diaz from the 47...” Indeed when I listened to the recording that is what it sounded like. Also the original report on that subject, which is in the evidence packet, has the name “Diaz.”

When the recording was played for Respondent after this line of questioning, he quickly identified the person on the call as himself.¹⁰

He was then asked if “According to that it was taken care of.” Respondent replied “Uh huh.” He was then asked: “So is it safe to say that summons was taken care of?” To which Respondent answered, “Yes.”

Respondent was then asked if that refreshed his memory of any other times and Respondent answer, “No.” The questioning then moved on to other topics and the interview ends shortly thereafter.

This is the entirety of the claimed admission. The questioners never went back and asked if Respondent now recalled the March 21, 2010 conversation,¹¹ they never asked if he recalled any further interaction with Bencosme on March 21 or March 22, 2010. They never asked if he spoke to Drucker or if he knew what if anything happened to the summons or how it happened. In short, they never inquired further on this matter.

¹⁰In the closing argument it was claimed that Santiago knew from the phone number that the caller was Respondent before the questions about Diaz were asked. This raises another issue because, if that were so, it would appear that the questioners were trying to mislead or trap Respondent.

¹¹ The interviewer incorrectly indicated that this call took place on March 22, 2013.

An official Department interview is quite a formal matter. Members of service are compelled to answer questions often, as in this case, posed by multiple questioners. They are advised of the very severe consequences that could occur if they are untruthful. The Department has extremely wide latitude to pose as many questions as it wants about what it wants. It can have a second interview to clarify issues. It has wide latitude to craft charges.

Grabbing and running with an alleged admission seems inappropriate under any circumstances but given the strong position of the Department it's particularly troublesome, not just because it is not "nice" but because the interviewee may not be clear as to what he or she has admitted to.

At trial, Respondent testified that he had no recollection of the second conversation. He conceded that the call might have been him informing Bencosme that someone had told him about a ticket being fixed but denied that he had any involvement in fixing a ticket. He also said that the message could have been about something else entirely.

The misconduct alleged here is serious and the penalty recommended by the Department is significant, to match the seriousness of the charge. If a finding of guilty not to mention a significant penalty is to be based on an alleged admission then the record must be clear that the member of service fully understands that he or she is admitting to the conduct it is claimed he or she has admitted to.

Under the circumstances, herein it is not clear that Respondent made a knowing admission to knowingly being involved in fixing or attempting to fix Ms. Ching's summons.

A related problem arises with regard to the second alleged admission Respondent purportedly made at his official Department interview.

The Department claims that during this official Department interview, Respondent admitted to fixing summonses during the 18 month period prior to that interview. I have listened to the interview repeatedly and have heard no such admission. Even when the Department Advocate (Advocate), in her closing argument, attempted to explain the supposed admission, her argument required a lengthy explanation and some interpretation of what was asked and what was replied.

It should be noted that reading the reports prepared by investigators in this case (RX A and RX B), it would appear that Respondent made clear and unmistakable admissions regarding the “Ching” summons and to having fixed tickets within the preceding 18-month period.¹² As I have said, these conclusions are not supported by the interview itself, but it appears that the investigators convinced themselves that this was so.

Listening to the audio recording of the interview, I can appreciate that the interviewers were frustrated. Respondent admitted that during his career (three years as a delegate and approximately 14 years as a member of the service at the time of the interview) he has fixed summonses but he refused to provide a number or to admit to fixing summonses in the time period they were looking for. Indeed, when he was specifically asked about the last year and half and stated: “In my recollection none.”

¹² One of the reports, (RX A) claims Respondent made a comprehensive admission. This report is both inaccurate and misleading.

To cope with this the interviewers talk over one another and had more to say than Respondent. Listening carefully to what they said, it appears that the questioners are telling Respondent what he means.

During the early part of the questioning, Respondent was asked how many times he has fixed summonses. He replied that he didn't know and that he did not keep a log. This seemed to me to be a pretty flippant answer and the questioner took it as such when she replied, "We know you do not keep a log. Nobody keeps a log."

That should have been the end of it, but a few minutes later in the questioning, the same interviewer, still trying to pin down a number stated: "It could be hundreds. He did not keep a log which tells me he did it a bunch of times because you would need a log for a bunch of times." So we went from "nobody keeps a log" to the denial of keeping a log as being evidence that "multiple" maybe "hundreds" of summonses were fixed by Respondent. It did not end there, later the interviewer stated: "The fact that you say you do not keep a log means it has been plenty because a log would mean many."

During one of these, what can only be called "lectures" by the questioner she stated that she had been doing "enough of these interviews to know" what common practice is for the delegate. This comment speaks to the tone and tenor of the interview.

Listening to the tape, it is clear that the interviewers are in a hurry.¹³ They made clear that they believed Respondent was guilty and that it was just a matter of getting him to admit it. As I have noted, once they obtained the barest admission, they moved on.

Whether they were right or wrong about Respondent's culpability, at least within the chargeable period, it is worth noting that, it would appear that in the entire yearlong

¹³ On cross-examination, Santiago acknowledged that during the time when Respondent was interviewed she and the other investigators were conducting multiple such interviews a day, which Respondent's counsel argued explained the perfunctory nature of the interview.

investigation, which involved multiple wiretaps, the only allegedly incriminating conversations that were linked to Respondent are the ones in this case. This is hardly evidence that Respondent was fixing “hundreds” of summonses.

During the interview, the investigator also went on to explain to Respondent why she was using the word “multiple” to describe how many summonses he had fixed. In this instance, the questioner was actually putting words in Respondent’s mouth rather than asking clear, direct, questions and eliciting answers.

To be sure Respondent seems to be evasive but he is not charged with false statements and with proper questioning the investigators would likely have been able to obtain a clear statement from Respondent.

As I have said, if a member of the service is going to be held accountable in a disciplinary action based on an admission which that member has made at an official Department interview then the statement must be clear. The alleged admission that Respondent fixed summonses in the last 18 months is not clear, in fact it is non-existent. On the other hand, during that official Department interview, Respondent was extremely clear that he did not recall any such event in the preceding 18 months.

It is worth noting that when Santiago, one of the interviewers at Respondent’s official Department interview, was herself confronted on cross-examination, she conceded that her questions did not clearly establish that summonses were “fixed” within the 18-month period in the charge. This concession, after she had so firmly and repeatedly stated that Respondent had made such an admission, underscores the need for clarity at the official Department interview, particularly when claiming that an admission has been made.

Based on the above analysis, Respondent must be found Not Guilty of Specification No. 1.

Specification No. 2 alleges that “on or about and between February 9, 2010 and August 8, 2011” Respondent “upon observing, having become aware of, or upon receiving an allegation of corruption or misconduct involving a member of service, did fail and neglect to immediately notify the Internal Affairs Bureau, as required.”

As can be seen, this specification has the same 18 month time frame. It is based largely on the same evidence that supported the first specification regarding the “Ching summons” and fixing summonses in the last 18 months and therefore fails for the same reasons.

There is an additional argument made with regard to this specification and it involves another purported admission made during the official Department interview. The Department’s position on this interview is best set forth in the cross-examination of Respondent at this trial.

During that cross-examination at trial, Respondent was asked a series of questions about what he said at his official Department interview. Respondent agreed that at some point the questioner asked him how many times in the past year he had been asked to take care of a summons. Respondent agreed that he had said he could not come up with a number. He agreed that he was asked if it was more than one time and he had answered that it could be. Respondent was then asked, at trial, if at the interview, he had been asked if that were “yes or no” and that he had responded that it was “yes.” At trial Respondent answered, “I’m sorry?” and the Advocate clarified. She asked: “But the investigator specifically was Lieutenant Fabregas who asked you, ‘It is yes or no,’ and

then at that point you answered, 'yes.'" Respondent replied, "If that's what the transcript says, yeah."

At the trial, after those questions and answers Respondent agreed that he had not contacted IAB about any requests to fix summonses.

If Respondent admitted, during his official Department interview, to having received requests to fix tickets without notifying IAB even if no summonses was fixed, he would be guilty of this specification. It would appear from these questions and answers at the trial that Respondent made such an admission at the official Department interview.

The problem here is that when one examines the recording and transcript of the interview itself, the alleged admission to conduct within the last year is not so clear. The reason is that there is good deal said, mostly by the questioner, from the time the issue of one year came up until the "yes or no" question was asked. None of this intervening material was brought up during questioning at the trial and that material impacts on the conclusion drawn from the questioning as posed at the trial.

To fully understand this, it is best to listen to the interview but I will attempt to make it clear in this writing.

After a good deal of questioning about fixing tickets, and after Respondent denied fixing tickets in the last year and a half, and after the first mention of a "log" and the first determination by the questioner that it was "multiple times," Santiago asks "Within the year." This is what the transcript reflects was said after that:

Respondent: Within the year, I do not know.

Santiago: Three, four?

Respondent: Honestly, I could not come up with a number.

Fabregas: Hundreds?

Respondent: No. Nothing like that.

Fabregas: Ten, twenty. I mean we are asking for an approximate of your own estimation.

Respondent: My own estimation, I could not tell you.

Fabregas: You have no recollection of any of the summonses you fixed?

Respondent: No.

Fabregas: But it is fair to say there has been multiple?

Respondent: I could not come up with that number.

Fabregas: Can you come up with one? It is not one because you would remember. So obviously it is more than one or you would have some type of recollection. You cannot put a number to it because you do not keep a log so you do not know how many, so that could be hundreds. I can go as high as the sky or come and meet you somewhere. That is why I am using the word multiple because it is more than one, correct?

Respondent: It could be.

Fabregas: It is yes or no.

Respondent: Yes.

As can be seen, there is a good deal that intervened between the mention of one year and the final demand for a "yes or no" answer. It is apparent that the time frame of one year was lost by the time of that "yes or no" question. In the end, it is not even clear whether they are talking about requests only or tickets actually fixed or both. In any

event, as I have repeatedly said, if the questioners believed that they had an admission they had a responsibility to clarify that the officer being questioned knew what he was admitting to. Instead, the questioner moved to another topic.

It should also be noted that I have now taken pleas, conducted trials and conducted mitigation of numerous cases that were part of this investigation. I can only recall one other such case where this "failure to report charge" was added. Although I disagreed with adding the charge in that case there were at least circumstances in that case which would arguably justify such a charge. The fact is that a large number of cases in which there were confirmed fixed tickets exist and no charge of failing to report to IAB was lodged. I am aware of no circumstances in this case, other than the weakness of the underlying allegation, which would call for such a charge. The basic rule of fairness would be, charge everyone or charge no one, unless there was a good reason to make an exception.

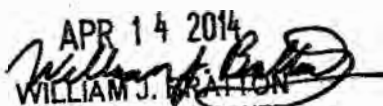
In any event, because of the failure of proof and lack of an alleged admission Respondent is found Not Guilty of Specification No. 2.

Respectfully submitted,



Martin G. Karopkin
Deputy Commissioner – Trials

APPROVED

APR 14 2014

WILLIAM J. BRATTON
POLICE COMMISSIONER